

[1 EDW. 8. & Ministry of Health [Ch. iv.]
1 GEO. 6.] Provisional Order Confirmation
(Evesham and Pershore Joint Hospital District) Act, 1937.



CHAPTER iv.

An Act to confirm a Provisional Order of the A.D. 1937.
Minister of Health relating to the Evesham —
and Pershore Joint Hospital District.
[19th March 1937.]

WHEREAS under the provisions of the Public 38 & 39 Vict.
Health Act 1875 the Minister of Health has c. 55.
made a provisional order which needs confirmation by
Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

1. The order of the Minister of Health which is set Order in
out in the schedule to this Act is hereby confirmed and schedule
shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Short title.
Provisional Order Confirmation (Evesham and Pershore
Joint Hospital District) Act 1937.

A.D. 1937.

SCHEDULE.

*Evesham and
Pershore
Order.*

EVESHAM AND PERSHORE JOINT HOSPITAL DISTRICT.

Provisional order altering the Evesham Joint Hospital Orders 1883 to 1931.

WHEREAS by virtue of the Evesham Joint Hospital Orders 1883 to 1931 as amended by the Evesham Joint Hospital Amendment Order 1936 (in this order called "the order of 1936") the borough of Evesham and the rural district of Evesham constitute a united district called the Evesham joint hospital district for the provision of a hospital or hospitals for infectious diseases and the governing body of the united district is the Evesham joint hospital board;

And whereas application has been made to the Minister of Health to include in the united district the rural district of Pershore :

Now therefore the Minister of Health in pursuance of the powers given to him by section 297 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Short titles
and com-
mencement.

1.—(1) This order may be cited as the Evesham and Pershore Joint Hospital Order 1936 and shall be read as one with the order of 1936 and the Evesham Joint Hospital Orders 1883 to 1931 and this order and those orders may be cited together as the Evesham and Pershore Joint Hospital Orders 1883 to 1936.

(2) This order shall come into operation on the first day of April nineteen hundred and thirty-seven.

Interpreta-
tion.

2. In this order unless the context otherwise requires—

"the appointed day" means the first day of April nineteen hundred and thirty-seven;

"the joint board" means the Evesham Joint Hospital Board re-named by this order;

"the Minister" means the Minister of Health;

"the order of 1883" means the Evesham Joint Hospital Order 1883 which was confirmed by Parliament as amended by the order of 1896 and certain other orders;

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“ the order of 1896 ” means the Evesham Joint Hospital Order 1896 which was confirmed by Parliament; A.D. 1937.

“ the united district ” means the Evesham joint hospital district re-named by this order; and *Evesham and Pershore Order.*

“ the rural district ” means the rural district of Pershore and “ the rural council ” means the council of that district.

3. As from the appointed day—

- (i) the united district shall be extended so as to include the rural district and shall be re-named the Evesham and Pershore joint hospital district;
 - (ii) the joint board shall consist of one ex-officio member and fourteen elective members and shall be called the Evesham and Pershore joint hospital board;
 - (iii) the schedule to this order shall be substituted for the schedule to the Evesham Joint Hospital Order 1931 and the order of 1883 as amended by subsequent orders shall have effect accordingly and references therein to the constituent districts shall be deemed to include the rural district.
- Extension of united district and future constitution of joint board.

4. The provisions of article IX of the order of 1883 shall apply to the first election by the rural council of the elective members to represent them on the joint board as if the election related to the filling of vacancies occurring on the appointed day. Election of elective members by rural council.

5. All property immediately before the appointed day vested in the joint board for the benefit of the united district shall by virtue of this order be held by the joint board for the benefit of the united district as extended by this order and all liabilities which immediately before the appointed day attach to the joint board shall attach to them in respect of the united district as extended by this order. Property and liabilities of joint board.

6. For the purpose of any adjustment of property income debts liabilities and expenses which may become necessary in consequence of the provisions of this order section 151 of the Local Government Act 1933 shall apply subject to any necessary modifications. Adjustment of property liabilities &c.

7. The Minister may hold any inquiry which he may deem necessary for the purposes of this order and section 290 of the Local Government Act 1933 shall apply as if the joint board were a local authority. Inquiries and expenses. 23 & 24 Geo. 5. c. 51.

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A.D. 1937.

SCHEDULE.

*Evesham and
 Pershore
 Order.*

1.	2.	3.		4.
Name of district.	Name of district council.	Ex-officio member.		Elective members.
		Number.	Description.	
The borough of Evesham.	The council of the borough of Evesham.	1	The mayor of the borough.	4
The rural district of Evesham.	The rural district council of Evesham.	—	- - -	5
The rural district of Pershore.	The rural district council of Pershore.	—	- - -	5
	Total - -	1	Total -	14

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